

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rose Lantigua (S14)	Team: Squad #14	CCRB Case #: 201510928	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/24/2015 1:30 AM	Location of Incident: East 86th Street and 2nd Avenue; 19th Precinct stationhouse	18 Mo. SOL 6/24/2017	Precinct: 19		
Date/Time CV Reported Thu, 12/24/2015 10:20 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/31/2015 11:03 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Luis Delgado	07850	943151	019 PCT
2. An officer			019 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Valsamakis Metaxas	26852	922783	019 PCT
2. SGT Daniel McCauley	141	942156	019 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Luis Delgado	Discourtesy: At East 86th Street and 2nd Avenue in Manhattan, PO Luis Delgado spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . An officer	Abuse: At the 19th Precinct stationhouse, an officer did not process § 87(2)(b)'s complaint regarding an officer.	B . Officer(s) Unidentified

Case Summary

On December 24, 2015, § 87(2)(b) filed the following complaint by phone with IAB, generating original log number 15-40232. The CCRB received the complaint on December 31.

On December 24, 2015, at approximately 1:30 a.m., § 87(2)(b) was driving eastbound on 86th Street toward 2nd Avenue in Manhattan. PO Luis Delgado and PO Valsamakis Metaxas of the 19th Precinct were directing traffic at the intersection due to a steady red light. § 87(2)(b) began to drive through the intersection when PO Delgado allegedly yelled, “Stop! Don’t you fucking see the light?” (**Allegation A**). § 87(2)(b) pulled over and PO Metaxas walked to his car and issued him a summons for disobeying a steady red light (BR01).

§ 87(2)(b) drove directly to the 19th Precinct stationhouse after the incident. § 87(2)(b) spoke to an unidentified officer at the stationhouse in a hallway. § 87(2)(b) initially complained about the summons he received, and also told the unidentified officer that PO Delgado used profanity when he told him to stop. § 87(2)(b) also told the unidentified officer that he wished to file a complaint. Allegedly the officer at the stationhouse did not process § 87(2)(b)’s complaint against PO Delgado (**Allegation B**).

Mediation, Civil and Criminal Histories

This case was unsuitable for mediation because § 87(2)(b) left the country shortly after providing a statement and will not return for approximately four months. On February 12, 2016, the NYC Comptroller’s office confirmed that § 87(2)(b) has not filed a Notice of Claim regarding this incident (BR02). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (BR03).
- PO Delgado has been a member of the NYPD for nine years and has had one previous CCRB allegation which was not substantiated § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(g)

§ 87(2)(b) a white male in his 20s, 5’7” tall, with an average build and brown hair. § 87(2)(b) could not remember the color of the officer’s shield. § 87(2)(b) recounted that the unidentified officer had just walked out of a room on the left side of the stationhouse. He also stated that the unidentified officer spoke to the desk officer. According to the Roll Call, Sergeant Daniel McCauley of the 19th Precinct was the desk officer on the date of the incident (BR04). Sgt. McCauley was interviewed but had no recollection of seeing § 87(2)(b) at the stationhouse (BR05). Furthermore, Sgt. McCauley is taller and older than § 87(2)(b)’s description of the subject. According to the Roll Call, PO Kevin Macfadden was assigned to stationhouse security, § 87(2)(g)

§ 87(2)(b) Sgt. McCauley explained that the stationhouse security officer stands in a front vestibule in the front of the stationhouse. § 87(2)(g)

§ 87(2)(b) of the subject and there is no record of the incident in his memo book (BR06). § 87(2)(g)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A -Discourtesy: At East 86th Street and 2nd Avenue in Manhattan, PO Luis Delgado spoke discourteously to § 87(2)(b)

§ 87(2)(b) recounted that he followed behind a taxi as he neared the intersection (BR07). PO Delgado was directing traffic at the intersection and instructed the taxi to make a right turn. § 87(2)(b) followed the taxi and made a right turn when PO Delgado allegedly yelled, “Stop! Don’t you fucking see the light?” § 87(2)(b) stated that his windows were rolled down approximately four inches at the time of the incident.

PO Delgado stated that he saw § 87(2)(b) approaching the intersection at a high speed (BR08). PO Delgado indicated to § 87(2)(b) that he needed to stop by raising both of his hands in the air. PO Delgado continued to direct traffic as PO Metaxas spoke to § 87(2)(b). PO Delgado denied saying, “Don’t you fucking see the light?” He further denied using any iteration of the word “fuck” or any profanity with § 87(2)(b). PO Delgado also stated that it was raining on the day of the incident and § 87(2)(b)’s windows were rolled up. PO Metaxas corroborated PO Delgado’s account of the incident and also said that he raised his hands in the air and repeatedly yelled “Stop!” as § 87(2)(b) approached the intersection (BR09). He denied hearing PO Delgado make the alleged statement or use any profanity and denied doing so himself.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B -Abuse: At the 19th Precinct stationhouse, an officer did not process § 87(2)(b)’s complaint regarding an officer.

§ 87(2)(g)
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation B** be closed as **officer(s) unidentified**.

Squad: 14

Investigator: _____
Signature Rose Lantigua Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date